IN THE INDUSTRIAL COURT OF MALAYSIA

CASE NO. 21/4-478/25

BETWEEN

FATIN ADILAH BINTI NORHADZLAN

AND

GREENTECH AXIS BERHAD

AWARD NO : 1923 OF 2025

Before	:	**SYED NOH BIN SAID NAZIR @ SYED NADZIR** **Chairman**
Venue	:	Industrial Court of Malaysia, Kuala Lumpur
Date of Reference	:	24.02.2025.
Dates of Mention	:	26.03.2025, 22.05.2025, 23.06.2025, 09.09.2025.
Date of Hearing	:	18.08.2025.
Representation	:	Claimant in person
		The Company Absent and unrepresented

REFERENCE

This is a reference made under Section 20(3) of the Industrial Relations Act 1967 ("the Act") arising out of the dismissal of **Fatin Adilah binti Norhadzlan** (hereinafter referred to as "the Claimant") by **Greentech Axis Berhad** (hereinafter referred to as "the Company") on 07.05.2024.

EX-PARTE AWARD

THE PARTIES

[1] The parties to the dispute are FATIN ADILAH BINTI NORHADZLAN of B-17-13A, Cubic Botanical, No. 6, Jalan Pantai Sentral 3, Pantai Dalam, 59200 Kuala Lumpur, Wilayah Persekutuan Kuala Lumpur (hereinafter referred to as "the Claimant') and GREENTECH AXIS BERHAD of Unit B1-3-1 & B1-3-2, Gaya Commercial Centre, Lorong Selangor, Pusat Bandar Melawati, 53100 Kuala Lumpur, Wilayah Persekutuan Kuala Lumpur (hereinafter referred to as the "the Company").

[2] The reference in this case required the Court to hear and determine the Claimant's complaint of dismissal by the Company on 07.05.2024 in order for a final award be handed down. Hearing proceeded Ex-Parte and concluded on 18.08.2025 in the absence of the company pursuant to section 29 (d) of the Industrial Relations Act 1967 (IRA).

Pre-Trial Chronological Events

[3] Upon being referred by the Director General, Industrial Relations Department of a reference dated 24.02.2025 pursuant to Section 20(3) of IRA, this court had proceeded to fix an e-mention date for 26.03.2025. Further e-mention date and case management were fixed for 22.05.2025. It was thereby informed that a physical mention date on 23.06.2025. The company was absent and unrepresented during these proceedings.

[4] The Assistant Registrar ("AR") who presided online on 26.03.2025 had fixed the dates for filings of the Statement of Case (16.04.2025) and Statement in Reply (07.05.2025) and an e-mention for 22.05.2025. The Claimant was present on the appointed dates; whereas the company had been absent i.e.

during the online session on 22.05.2025, physical mention on 23.06.2025 and the online session on 09.09.2025 as well as the hearing date on 18.08.2025.

[5] By way of Form G dated 23.06.2025 *(Notis Perbicaraan)* sent by A.R. Registered on both parties on 24.06.2025, the company and the Claimant were issued with notification that hearing date for the matter had been fixed for 18.08.2025.

[6] Based on the above attempts for service of notices, sufficient and reasonable attempts had been made to inform the company of the timeline for filings of the pleadings and the hearing dates fixed for this case. As such there is no excuse for the Company for failing to turn up in Court on 18.08.2025 that was fixed for hearing.

[7] Hence, the hearing was ordered to proceed Ex-Parte on 18.08.2025 pursuant to section 29(d) of the IRA 1967. In relation to this, the Court is guided by the case of ***Lee Mei Wan v. Ultimate Media Group Pte Ltd [2017] 2 LNS 1668.*** It must be noted that the Statement in Reply was never filed by or on behalf of the company. Upon completion of the claimant's evidence, the claimant's solicitor was ordered to file a Written Submission.

CLAIMANT'S EMPLOYMENT

[8] The Claimant's employment background with the Company until the Claimant's Wrongful Dismissal from the Company are as follows:

8.1 The Claimant states that she commenced her employment with the Company under a fixed-term employment contract for a period of 2 years effective from 15th February 2023 until 14th February 2025, as a Corporate Administrative and Special Function Manager (Grade: M4), with a basic salary of RM 10,000.00 per month.

8.2 The employment contract also provides *"2. You will undergo a three (3) – six-month (6) probationary period after which you may be confirmed in service depending on the merits of your performance."* **(see: CLB-1, page 3, clause no. 2).**

[9] The Company consistently delayed and/or failed to make payment of salaries due and accumulated in total of 8 months and 7 days to the claimant. The unpaid salaries are from the month of September 2023 until the effective date of dismissal, 7th May 2024 resulting in most employees including the Claimant having requested and approved by the Company whether verbally and/or written (via

WhatsApp) to Work-From-Home.

[10] That being the background facts, on 1.4.2024 presumably on a complaint made to the Department of Work Force (JTK), a team of officers from JTK had visited the office premises to investigate the possible breaches of employment rules and regulations.

[11] On 2nd April 2024 via email at 5:18 PM, the Company issued the claimant with a Show Cause Letter dated 2nd April 2024. The cover email itself contains allegations of taking leave without prior permission that is a misconduct, resulting in wilful subordination and gross negligence of duties **(refer CLB-1, page 29). The attached Show Cause Letter** accuses the Claimants of being absent from attending the office from 20.2.2024 until 2.4.2024, claiming work-from-home without instruction, or supporting documents or evidence from the Executive Chairman **(refer CLB-1, page 30)**.

[12] Vide a reply letter dated 8th April 2024, the Claimant has provided written explanation including ten (10) queries for the Company, which were left unanswered and/or ignored by the Company **(refer CLB-1, pages 33 to 35).**

[13] Subsequently, vide a “Letter of Termination” dated 16th April 2024, sent via e-mail, the Claimant’s employment was terminated with effect from 7th May 2024, purportedly on three (3) grounds (refer CLB-1, pages 37 to 38), quoted verbatim as follows:

> *“i. Your explanation dated April 8, 2024, in reply to show cause notice dated April 2, 2024, has been found to be unsatisfactory.*
>
> *ii. As per request in our show cause letter, your absence from duty as per below without any evidence, reports or supporting documents:*
>
> | | |
> |---|---|
> | *August 2023:* | *9 days* |
> | *September 2023:* | *14 days* |
> | *October 2023:* | *4 days* |
> | *November 2023:* | *4 days* |
> | *December 2023:* | *19 days* |
> | | |
> | *January 2024:* | *9 Days* |
> | *February 2024:* | *14 days* |
> | *March 2024:* | *20 days* |
> | *April 2024:* | *1 day* |
> | | |
> | *Total:* | *94 Days* |
>
> *iii. This decision has been made after careful consideration and evaluation of the current business*

requirements. Effective May 7, 2024, we will be concluding our professional relationship and terminating your contract of employment. As stated in Offer of Contract Employment [No. 6 Notice of Termination], Notice of Termination of employment on either side must be in writing. The period of notice required during the probationary is (14) working days on either side without assigning any reasons therefor. Upon confirmation of service, the required period of notice is (1) month on either side. Should either side fail to give the required period of notice, salary in lieu of notice will be paid."

WITNESSES, WITNESS STATEMENTS AND CAUSE PAPERS

[14] The Claimant's Statement of Case is the only Pleading before the court. Witnesses produced by the claimant testified through respective Witness Statement as follows:

a. **Fatin Adilah Binti Norhadzlan (CLW1)** whose Witness Statement was adopted as Evidence in chief and marked as **CLWS1;**

b. **Mohd Adha Azani Bin Mohd Mahfoz (CLW2)** whose Witness Statement was adopted as Evidence in chief and marked as **CLWS2; and**

c. **Mohd Nazwan Bin Ahmad Refain (CLW3)** whose Witness Statement was adopted as Evidence in chief and marked as **CLWS3.**

[15] The claimant herself gave oral evidence and has filed a **Bundle of Documents** duly marked as **CLB1** as well as **Written Submission** as directed upon the completion of the trial.

ROLE OF INDUSTRIAL COURT

[16] The role of the Industrial Court was lucidly explained by His Lordship Raja Azlan Shah CJ (Malaya) (as His Royal Highness then was) in ***Goon Kwee Phoy v. J & P Coats (M) Bhd. [1981] 1 LNS 30; [1981] 1 MLJ 129*** (Federal Court) at page 136 as follows:

> *"Where representations are made and are referred to the Industrial Court for enquiry, it is the duty of the Court to determine whether the termination or dismissal is with or without just cause or excuse. If the employer chooses to give a reason or excuse for the action taken by him, the duty of the Industrial Court will be to enquire whether that reason or excuse has or has not been made out. If it finds as a fact that it has not been proven, then the inevitable conclusion must be that the termination or dismissal was without just cause or excuse. The proper enquiry of the Court is the*

reason advanced by the employer, and that court or the High Court cannot go into another reason not relied on by the employer, or find one for him."

[17] The Federal Court in ***Wong Yuen Hock v. Syarikat Hong Leong Assurance Sdn. Bhd. & Another Appeal [1995] 3 CLJ 344*** at page 352 succinctly stated the function of the Industrial Court in dealing with dismissal cases as follows:

"On the authorities, we were of the view that the main and only function of the Industrial Court in dealing with a reference under s. 20 of the Act (unless otherwise lawfully provided by the terms of the reference) is to determine whether the misconduct or irregularities complained of by the management as the grounds of dismissal were in fact committed by the workman, and if so, whether such grounds constitute just cause or excuse for the dismissal."

[18] The said principle was reiterated in ***Milan Auto Sdn. Bhd. v. Wong Seh Yen [1995] 4 CLJ 449*** at page 454 and 455 by the Federal Court, where His Lordship Mohamed Azmi FCJ said:

"As pointed out by this Court recently in Hong Leong Assurance Sdn. Bhd. v. Wong Yuen Hock [1995] 3 CLJ 344; [1995] 2 MLJ 753, the function in the Industrial Court in dismissal cases on a reference under section 20 is two-fold:

first to determine whether the misconduct complained of by the employer has been established and secondly to determine whether the proven misconduct constitutes just cause or excuse for the dismissal of the employee."

BURDEN OF PROOF

[19] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as decided by the Court of Appeal in ***Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor [2002] 3 CLJ 314*.** It was held that:

"Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the ground is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution… In our view the passage quoted from Administrative Law by H. W. R. Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature and gravity of the issue."

[20] In ***Ireka Construction Berhad v Chanthiravathan a/l Subramaniam James [1995] 2 ILR 11 - (Award No. 245/1995),*** the Industrial Court had this to say with regards to the burden of proof placed on the Company:

> *"It is basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed that offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer to prove that he has just cause and excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. The just cause must be, either a misconduct, negligence or poor performance based on the facts of the case…"*

STANDARD OF PROOF

[21] The standard of proof applicable to dismissal cases is the civil standard of proof on a balance of probabilities as decided by the Court of Appeal in ***Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor. [2002] 3 CLJ 314*** as follows:

"Thus, we can see that the preponderant view is that the Industrial Court, when hearing a claim of unjust dismissal, even where the ground is one of dishonest act, including "theft", is not required to be satisfied beyond reasonable doubt that the employee has "committed the offence", as in a criminal prosecution… In our view the passage quoted from Administrative Law by H. W. R. Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on balance of probabilities, which is flexible, so that the degree of probability required is proportionate to the nature and gravity of the issue."

Law On Ex-Parte Hearing

[22] In ***Lee Mei Wan v. Ultimate Media Group Pte Ltd [2017] 2 LNS 1668***, it was observed by the learned chairman that:

Ex-parte Hearing

[4] Subsection 29(d) of Act 177 provides for an ex-parte hearing without the presence of one of the parties to the dispute as follows:

"The Court may, in any proceedings before it:

(a)

...

(d) hear and determine the matter before it notwithstanding the failure of any party to submit any written statement whether of case or reply to the Court

within such time as maybe prescribed by the President or in the absence of any party to the proceedings who has been served with a notice or summons to appear".

[5] ***OP Malhotra, The Law of Industrial Disputes Volume 1: 6th Edition****, at page 1062 states:*

"If, however, a party wilfully absents himself in such a way that the adjudication is likely to be impede, or wilfully tries to delay or avoid the proceedings, the tribunal may fix a pre-emptory hearing on a particular day. After reasonable notice of hearing has been given to the defaulting party, if he still neglects or refuses to attend, the tribunal may and ought to hear in his absence. Prompt discharge of business is of particular importance before a tribunal adjudicating an industrial dispute…."

[6] *Therefore, the Court was of the view that in the circumstances of this case, an ex-parte hearing was warranted due to the Company's failure to attend Court although the Notice of Hearing and the earlier Notice of Mention had been served on it as stated above.*

Also see the case of: ***Zahari Ruslan v Wajib Cemerlang Sdn Bhd [2011] 2 LNS 0450***

[23] On the other hand, this Court is also mindful of its duty to adjudicate the matter on merit albeit the case proceeded ex-parte.

The Claimant must be subject to the burden to prove his/her case on the balance of probabilities. This is succinctly set out in the case of **Wong Brothers' Building Construction V. Choo Chee Siam [2005] 2 ILR 356** in which the Company was absent during the date of the hearing. The Court continued to hear the case on an ex-parte basis, wherein the Court held inter alia, as follows:

> ***"The Court is mindful of the role in ex parte hearing by referring to the case of Ike Video Distributors Sdn. Bhd. v. Chan Chee Bin [2004] 2 ILR 687 where the Learned Chairman quoted from the book "The Law of Industrial Disputes" by O.P. Malhotra Vol. 3rd Edition. At p 716:***
>
> > ***"A rule empowering the tribunal to proceed EX-PARTE if a party is absent and sufficient cause is not shown for his absence, would not enable it either to do away with the inquiry or straight away pass on an Award without giving finding on the merits of the disputes. In other words, the absence of a party does not entail the consequence that an Award will straightaway be made against him"***

ISSUES

[24] The issues before this court are:

i. whether there is termination,
ii. if the answer is yes, whether the termination is with just cause or excuse; and
iii. Whether the purported offer of reinstatement genuine.

COURT'S EVALUATION AND FINDINGS

Issues on Delay in Payment of Salary

AUGUST 2023 SALARY PAID IN APRIL 2024

[25] On 9th April 2024, the Company credited August 2023 salary to the Claimant's bank account with an amount of RM7,833.65 despite the Company claimed that the Claimant was absent for 9 days in August as per alleged in the Letter of Termination dated 16th April 2024. The sum of RM7,833.65 represents the amount without any deductions for the 9 days in August 2023, during which the Company alleged that the Claimant was absent. The company must be construed to having waived its allegation of absenteeism for 9 days in August 2023 against the claimant.

[26] It is pertinent to note that the company has failed to reply the claimant's appeal letter dated 2nd May 2024 titled *"Surat Rayuan: Permohonan dan Pembatalan Surat Pemecatan Kerja ("Letter of Termination") Bertarikh 16.04.2024"* **("the appeal letter")** wherein the issue of inconsistencies and/or discrepancies between the allegations set out in the "Show Cause Letter" e-mail, "Show Cause Notice" letter both dated 2nd April 2024, and the reasons to terminate the Claimant's employment in the "Letter of Termination" dated 16th April 2024 were raised at length (from clause 5.2 until clause 5.8.14) **(refer CLB-1, pages 51 to 60)**. This could only lead to the presumption that the company has no explanation to support the allegation of misconduct levelled against the claimant.

The Purported Reinstatement

[27] In a discussion between the Claimant and the Executive Chairman/CEO on 09th May 2024 in response to the Claimant's appeal letter, the Company (its Executive Chairman/CEO) offered the Claimant a reinstatement via a phone call on 21.05.2024 and instructed the claimant to work as usual commencing on 1st July 2025 and promised that a letter of reinstatement be issued before 01.07.2024 **(refer CLB-1, page 76)**.

[28] The date to commence employment by way of reinstatement was unilaterally changed to 15th July 2024 via a telephone call made again by the Executive Chairman/CEO to the Claimant on 01.07.2024 at around 10:58 a.m.

[29] The Claimant seemingly prepared to accept the purported reinstatement offer, has on 15th July 2024 arrived at the office premises area to start working. However, she did not enter the company's premises because the company did not issue any letter on the reinstatement and/or the retraction of termination letter against the claimant despite Hussfazellah (the HR personnel) was ready to hand over the office access card. This court is of the views that the company has failed to give an official authorization to the claimant to enter the company premises and effectuate the claimant's reinstatement notwithstanding the oral assurance given vide telephone call on 01.07.2024.

[30] There were 6 follow-ups by the claimant for the reinstatement letter from 30th June 2024 until 16th July 2024; alas, the Executive Chairman/CEO has failed and/or refused to issue a letter and/or a written statement with regards to his verbal reinstatement offer.

[31] In the aforesaid, the company's purported offer of reinstatement is nothing more than an illusion to camouflage the company's fundamental breach to pay salaries due and outstanding to the claimant. The company's non-committal to the offer to reinstate the claimant was clearly reflected by the reluctance of the company to issue a formal letter of reinstatement, simultaneously revoking the termination. The unchallenged fact remains that the claimant was in fact terminated and the termination was without just cause or excuse.

[32] The fact that the claimant's application to work from home was approved by the Executive Chairman/CEO on 30.4.2024 was never challenged. The approval can be seen at **page 47 and 48 of Claimant's Bundle of Documents (CLB1).** The claimant was working from home as she had used up her financial resources that she received, denied of further monthly salaries that she deserved to make ends meet despite having shown her loyalty to serve the company without contractual pay, until she was terminated for oppressive reasons seriously tainted by mala fide.

[33] Screenshot/s of WhatsApp messages to the Executive Chairman/CEO that are before the court had proved prima facie

that the Executive Chairman/CEO has ignored and/or failed to answer 64 phone calls in total made by the Claimant, only to request for the Reinstatement Letter and the unpaid salaries which are promised to be paid to the Claimant **(refer to the Claimant's Bundle of Documents (Volume 2) page 36).**

[34] Notwithstanding that nowhere it was adduced that the claimant was confirmed in her emplyment, nevertheless, it is reasonable to construe otherwise. The claimant had worked for the company for more than a year during which the claimant's probation was never emphasised. As such it is safe to make a reasonable inference that the claimant was a confirmed employee after the probationary period of 3 months according to the letter of offer.

[35] In view of the oppression that the claimant had endured in particular having to sustain working without and/or on an excessively prolonged delay of payment of salaries, this court hereby Order punitive compensation of one (1) month salary for the claimant pursuant to section 30(6) of the Industrial Relations Act 1967.

DECISION

[36] The company was absent during the entire proceedings and has failed to produce witnesses to adduce evidence to contradict the evidence available before this court adduced by the Claimant. As such, this court is of the views that the Claimant has prescribed admissible and credible evidence on the balance of probabilities in support of her case of termination without just cause or excuse.

[37] Failure to be present in court in order to cross examine the Claimant's witnesses and challenge the claimant's evidence has denied this court to evaluate any evidence to the contrary. Given the circumstances, this court is compelled to accept and there is nothing to dispute the ex-parte evidence adduced by the Claimant.

[38] As such, this court found that the Claimant's dismissal without just cause or excuse. On evidence, the offer to reinstate was never meant or intended to be executed and therefor a sham. On another note, this Court is mindful of its duty to adjudicate the matter on merit notwithstanding the case proceeded ex-parte. The Claimant must be subject to the burden to prove her case on the balance of probabilities as it was held in ***Wong Brothers' Building***

Construction V. Choo Chee Siam (supra). In this case, the burden to prove her case on the balance of probability has been prima facie discharged by the Claimant. Hence, the Claimant's claim is hereby allowed.

REMEDIES

Reinstatement

[39] This court has considered the claimant's evidence that she has worked for the company until 7.5.2024. This essentially means that the claimant has completed one year of service for the company. This court is of the views that the claimant is not entitled to an Order for Reinstatement since the relations is no longer harmony. In such a case, compensation in lieu of reinstatement would be just and proper.

Backwages

[40] In determining the quantum for backwages that is discretionary in nature, the Court may award not exceeding the maximum of 24 months based on the last drawn salary; regards shall have to the provision of Clause 1 of the Second Schedule in [Factors For

Consideration In Making An Award in Relation To A Reference Under Sub Section 20(3)] of Section 30(6A) of the IRA 1967.

[41] The claimant's document "*Table of Salary Payments Credited into the Claimant's Bank Account"* has listed payments of salaries she had received that is of assistance to this court, albeit the Bundle Documents (Volume 2) being unmarked as it was filed after the conclusion of the hearing. The company had only paid monthly salaries to the claimant for the months of February, March, April, May, June, July and August 2023 **(refer: page 11, Claimant's Bundle of Documents Volume 2).** The claimant's evidence that she had worked until 7.5.2024 effectively means that the company has failed to pay her approximately 8 months' salaries from September 2023 until 7 May 2024. The claimant was to have rightfully continued working for the company for 9 more months until the end of her tenure i.e. 15 February 2025 but for the termination.

[42] Since the claimant's employment was for a duration of a fixed term of 24 months from 15.02.2023 to 15.02.2025, the claimant was entitled for backwages being the payment of salaries for the months of September 2023 until December 2023, January 2024

until December 2024, and January 2025 until 15 February 2025; accumulatively 17.5 months of her last drawn salary of RM10,000.00. Insofar as the unpaid contributions and deductions to EPF and SOCSO is concerned, the issues had to be escalated to the governing authorities for the purpose of enforcement.

CONCLUSION

[43] Having considered the fact and circumstances of the case and evidence adduced ex-parte by the claimant, this Court Awards in favour of the Claimant as follows:

a)	**Compensation in lieu of reinstatement**	RM10,000.00
b)	**Backwages:** RM10,000.00 x 17 months	RM170,000.00
c)	**Punitive compensation**	RM10,000.00
	TOTAL:	**RM190,000.00**

[44] At the risk of repetition, this Court had taken into account the evidence adduced ex-parte in its entirety, having borne in mind Section 30(5) of the IRA 1967 by which virtue this Court shall act according to equity, good conscience and the substantial merit of the case without regard to technicalities and legal form; and

Section 30(6) of the same act, in making this award, the court shall not be restricted to the specific relief claimed by the parties.

[45] The amount totalling **RM190,000.00** awarded above less statutory deduction (if any), together with interest at the rate of 8% per annum, the interest to be calculated commencing on the 31st. day from the date of the making of the award until the day the award was satisfied pursuant to section 30(1A) of the Industrial Relations Act 1967 shall be paid by the Company to the Claimant through the claimant's solicitors. For the avoidance of doubt, the interest shall not be accrued if the award was fully satisfied within thirty (30) days from the date of the making of this award.

HANDED DOWN AND DATED THIS 18TH DECEMBER, 2025

~Signed~

(SYED NOH BIN SAID NAZIR @ SYED NADZIR)
CHAIRMAN
INDUSTRIAL COURT OF MALAYSIA
KUALA LUMPUR